



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2021-24492 / PODS Case No. C-031988 regarding Police Officer Ganesh Persaud

Date: September 18, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Persaud made several discourteous and offensive remarks to individuals and failed to provide his name and shield number. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of Training, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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MOHAMMAD KHALID
INTERIM CHAIR

February 4, 2025

The Honorable Jessica Tisch
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Ganesh Persaud
(Tax Reg #949478, CCRB #201910363)

Commissioner Tisch:

A negotiated settlement of Training was agreed upon and signed by all parties on January 13, 2025. Assistant Deputy Commissioner - Trials Vanessa Facio-Lince endorsed the negotiated settlement on January 28, 2025.

On November 29, 2019, at approximately 2:45 a.m., Police Officer Ganesh Persaud and another officer responded to a call for medical assistance by Ms. Ayesha Hopwah at an Apartment in Queens.

Ms. Hopwah was transported by ambulance to Weill Cornell Medical Center. En route to the hospital, Officer Persaud stated that Ms. Hopwah “is crazy,” and when Ms. Hopwah stated that Officer Persaud kicked her, Officer Persaud replied with “good.”

At the hospital, Ms. Hopwah asked Officer Persaud for his name and shield number, neither of which Officer Persaud provided. Officer Persaud repeatedly made comments based on his perception of Ms. Hopwah’s mental disability, and stated that Ms. Hopwah had “problems,” and “deficiencies,” and called her a “sick woman,” “mentally sick,” and a “mental person.”

Officer Persaud also made comments regarding Ms. Hopwah’s religion and stated that since Ms. Hopwah did not like gay people, Jewish people, or Muslim people, she should watch out as Weill Cornell Medical Center is a “Jewish hospital.” Officer Persaud told Ms. Hopwah that if she did not change the way she acted, Jesus will not love her, and stated, “This is a Jewish hospital and she does not like Jews, so she is in the wrong place.”



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Officer Persaud, in response to a conversation between two EMTs about Black Friday, told Ms. Hopwah that she would make a good bodyguard for a crowded Black Friday sale, and then asked her if she would escort EMTs to a store.

After being triaged, Ms. Hopwah was escorted to the psychiatric emergency room in Weill Cornell Medical Center. A Weill Cornell Medical Center nurse, Thomas McCauley, approached Officer Persaud inside the psychiatric emergency room and asked him to stop “agitating” Ms. Hopwah, which Officer Persaud refused to do. Mr. McCauley then asked Officer Persaud to leave.

Officer Persaud walked towards the door to the nursing station, which required a keycard to open, and began to yank on it while stating, “Let me the fuck out of here.” Mr. McCauley opened the door for Officer Persaud, who commented that they were “fucking leaving,” and then told Mr. McCauley, “You’re an asshole” and “You’re a fucking idiot.” Officer Persaud then left the hospital.

The statements made by Officer Persaud to Ms. Hopwah were offensive and discourteous and served no legitimate law enforcement purpose.

NYPD disciplinary guidelines indicate that for Offensive Language, the mitigated penalty is the forfeiture of one (1) vacation day, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines for the Offensive Language charges for the following reasons:

Officer Persaud has been an officer for almost fifteen years. He has no disciplinary history and has no prior substantiated charges with the CCRB. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommend Training.

Respectfully submitted,
ABaxter

Ashley Baxter, Esq.
APU Prosecutor
Civilian Complaint Review Board
Administrative Prosecution Unit

Cc: Stuart London, Esq.